

25STCV14082 25STCV14082

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Creditors Adjustment Bureau Inc. v. Screamline Investment Corporation

FINAL RULING

Following oral arguments, the Court modifies its tentative ruling, and enters this as its final.

Plaintiff's motion to compel Further Responses to Requests for Production of Documents is moot as to responses. Responses were served on 6/4/26. The Request for Sanctions is DENIED.

Plaintiff's motion to compel Further Responses to Special Interrogatories Nos 1-17, is GRANTED except to Interrogatory NO. 6, or any that request facts to support affirmative defenses. An Answer has not been filed. Once an Answer is filed, and affirmative defenses are pled, responses regarding those affirmative defenses are due within 30 days. Defendant must provide further, Code-compliant responses within 30 days. The request for sanctions is GRANTED in the total sum of \$2,400 (3 hours for the motion and reply, and one hour for appearing at the hearing on 7/2/26.)

Defendant's requests for sanctions are DENIED.

ANALYSIS

Requests for Production of Documents

Plaintiff has indicated that Defendant produced further verified responses to documents on June 4, 2026. Accordingly, an order compelling further responses is moot. However, those responses came only after Plaintiff filed this motion, and repeated efforts by Plaintiff to obtain compliant responses. California Code of Civil Procedure 2031.310(h) provides, "Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

As addressed at oral arguments, because responses were delayed by the entry of a protective order, Defendant acted with substantial justification and sanctions are denied.

Special Interrogatories

Interrogatory Responses must comply with Code of Civil Procedure §2030.210. A party may refer to documents in discovery responses if the answer to an interrogatory may be found in documents, CCP §2030.230, only where the party specifically identifies the documents where the responsive information may be found. In other words, the interrogatory response must specifically refer to CCP §2030.230, and the specific documents containing the responsive information must be identified. CCP §2030.230. Production of a chart does not satisfy Defendant's obligations to respond with verified facts to each interrogatory. The 17 interrogatories are narrowly tailored to the issues in this case. The motion for further responses is GRANTED.

Further, code-compliant and verified responses are due within 30 days.

Because the Court GRANTS the motion, sanctions are awarded for 3 hours of time preparing the motion and reply. The motions are being heard at the same hearing. Plaintiff's hourly rate is \$600/hour. One hour of time for appearing at the hearing on 7/2/26 is also awarded. Discovery Sanctions are awarded against Sandra Vivonia Esq., and Lex Opus jointly and severally in the amount of \$2,400.

Conclusion

Plaintiff's motion to compel Further Responses to Requests for Production of Documents is GRANTED with respect to sanctions.

Plaintiff's motion to compel Further Responses to Special Interrogatories Nos 1-17, is GRANTED. Further, code-compliant and verified responses are due in 30 days. The request for sanctions is GRANTED.

Sanctions totaling \$2,400, are payable within 30 days.

Defendant's requests for sanctions are DENIED.